

SECOND SEMESTER
LAW OF TORT TOPICAL COMPENDIUM 3
DEFAMATION

I. NATURE OF DEFAMATION

- I. In law, a person is considered to be entitled to the protection of his reputation. This is because questions as to reputation go to the root of a person's business associations, social relationships, economic partnership etc. The issue of reputation permeates all sector of society as it affects the public's choice of whose business to patronize, the public's choice of whom to elect as a leader or whom to confer honour etc.
- II. The tort of defamation is concerned with intentional or unintentional damage to the reputation of a physical or a corporate person caused by injurious declaration or publication. Any word spoken or written to the hearing or knowledge of third parties that can bring down the reputation of persons being referred to and constituting damage thereof constitutes defamation.
- III. Defamation is a tort which deals with injury to the reputation of others as a result of the words written or spoken by a tortfeasor. Lord Atkin in the case of **SIMS V STRETCH** defined defamation as a statement which injures the reputation of the plaintiff by its tendency to lower him in the estimation of right thinking members of society or which causes right thinking members of society to shun or avoid him.
- IV. Thus the law of defamation is designed to protect, compensate and remedy any injury done to the good name, reputation, office etc of the person who has suffered as a result. In **AFRICAN PRESS LTD V. IKEJIANA**, the appellant published in his newspaper that the respondent was a fake medical doctor. The respondent had a degree in medicine. It was held to be defamation.
- V. However, a person cannot recover damages for the loss of reputation he does not have. Where a person has no good reputation, in respect of what is said, then the law has nothing to protect him for. This has been aptly expressed thus by Professor Nokes: "If an alarm of theft is raised at a charity bazaar, and the thief slips a stolen purse into the pocket

of a Bishop, the episcopal character may allay suspicion; but if a bishop should be caught 'shop lifting' the Episcopal character would merely appear to be unmerited."

2. THE MEANING OF RIGHT THINKING MEMBERS OF SOCIETY

- i. The law adopts the standard of "right thinking members of society" as the yardstick to measure and determine when statements can be regarded as defamatory.
- ii. The organ of state that determines that standard of right thinking members of society is the court of law.
- iii. There are 3 things worth noting about the phrase 'right thinking members of society.'

These things are,

- The phrase 'right thinking members of society' in the law of torts includes the average people in society who are in a right state of mind. It excludes people who are so cynical that they think the worse of any man irrespective of what was said about him. In the case of *Egbuna v. Amalgamated Press of Nig. Ltd* the Supreme Court described how it finds right thinking members of society thus: "The court usually rules out on the one hand, persons who are so lax or so cynical that they would think none the worse of a man whatever was imputed to him, and on other hand those who are so censorious as to regard even trivial accusations, if they were true as lowering another's reputation, or who are so halty as to infer the worst meaning from any ambiguous statement... the ordinary citizen... is neither unusually suspicious nor usually naïve and he does not always interpret the meaning of words as would a lawyer, for he is not inhibited by a knowledge of the rules of construction". In essence, the right thinking member of society is neither a fool who despises everyone or a technical person like a lawyer who can read meanings into words that the average person will not read into those words.
- The term 'right thinking members of the society' means the general public not a section of the public. In *BYRNE V DEAN* the defendant and plaintiff were members of the same golf club. The defendant put up a notice that stated that the plaintiff went to the Police and told them about unlawful gambling in the club premises. The plaintiff sued the defendant for defamation on the grounds that the defendant's notice lowered his reputation in the eyes of other members of the club. It was held that the defendant's action was not defamatory because even though members of the club might think less well of the plaintiff, right

thinking members of the general public would approve of the action the plaintiff was alleged to have undertaken.

- The statement complained about must be defamatory in the estimation of right thinking members of society. In **EGBUNA V. AMALGAMATED PRESS NIGERIAN LTD** the defendant published in her newspaper that, 'Rail Board rejects 1.8 Million Pounds Deal, Chairman, General Manager Blamed for Fantastic Bid.' The Plaintiff who was chairman general manager of Railway Corporation sued for defamation. The court held that the ordinary member of the public would not view the statement as defamatory.

The aim of applying the phrase 'right thinking members of the society' to defamation is to provide an objective standard by which to measure if the defendant's statement was defamatory.

3. CHARACTERISTICS OF DEFAMATION

- I. It can be committed against natural or artificial persons. Thus defamation can be committed against the reputation of a person or a corporate body or the state or any of its officials.
- II. It can be committed by a natural or artificial person. Thus defamation can be committed by a person or a corporate body, the state or any of its officials.
- III. For anything to amount to defamation, the words used must be words that express the plaintiff to hatred, ridicule or contempt. In **SIM V. STRETCH**, the plaintiff's former housemaid was employed by the defendant. The defendant wrote the plaintiff saying 'Edith has resumed her service with us today. Please send her belongings and the money you borrowed from her and the wages you owe her to us.' The court held that the words were not defamatory since the words can be given several interpretations.
- IV. Defamation is of 2 types: Slander and Libel
- V. Libel is actionable per se
- VI. Slander is not actionable per se except under 5 circumstances discussed below.

4. TYPES OF DEFAMATION

- I. There are 2 types of Defamation: **LIBEL** and **SLANDER**.

- II. Historically, Libel and Slander were separate torts. But today, they are treated as 2 aspects of the single tort of defamation and are generally governed by the same principle.
- III. The distinguishing element in these 2 torts is that libel is actionable *per se*. Slander is not actionable *per se* unless 5 conditions are fulfilled.
- IV. Another distinguishing element in these 2 torts is the mode of committing them

5. LIBEL

- i. Libel is defamation in permanent form. This Permanent form may be by way of written or printed words contained in newspapers, books, letters, notice, email, etc. This permanent form may also take the form of cartoons, photograph, painting, statue (carved or sculptured) or movie. In the case of *Yousouppoff V M.G.M. Pictures Ltd*, The defendant made a movie about the royal family to which the plaintiff belonged. In the movie, the defendant implied that the plaintiff had been raped by the leader of the revolution that sacked the royal family. She sued for Libel. The court held that an action in Libel existed as the movie was capable of causing the plaintiff to be avoided and shunned by right thinking members of society.
- ii. The primary feature of Libel that distinguishes it from Slander is the fact that libel is actionable *per se*, whereas slander is not actionable *per se*. This means that a plaintiff needs not to prove actual injury suffered in an action for libel. The implication of this is that wherever libel is published, the law will presume that damage has been caused to the plaintiff's reputation and will award him general damages by way of compensation. In *NTHENDA V ALADE* the plaintiff argued that the defendant's publication was defamatory of him. The defendant in his defense argued that the plaintiff had given no particulars of actual injury suffered as a result of the publication. The court rejected the defendant's argument and ruled that once a publication has been found to be a libel, the law presumes damages.
- iii. Another distinguishing feature of Libel is that Libel may also be a crime. Example Seditious or Obscene Libel. Slander on the other is never a crime.

6. DEFAMATION AND SOCIAL MEDIA

Where a person publishes a defamatory statement on social media such as WhatsApp, Twitter, Facebook etc, and this defamatory statement is republished by others, both the original publisher and the others would be liable for the tort of defamation. This is because the law places the onus on every individual to ensure that anything he is publishing or re-publishing is true, accurate and absolutely correct.

7. DEFAMATION IN MEDIA HOUSES

The above rule on Social Media applies also to media houses. In *EJABULOR V. OSHO*, it was held that where a person addressing a press conference makes a defamatory statement which is published by the press bodies (Newspaper, radio, television etc) he is addressing, both the maker of the statement and the press bodies would be liable. On the other hand where a person sends a defamatory disclaimer against another person to be published in a newspaper, only the person publishing the disclaimer would be the one liable for the publication. In *ATOYEBI V. ODUDU* the defendant published a disclaimer notice in a newspaper, alleging that the plaintiff was a criminal. The court held that the defendant was solely liable and not the newspaper.

8. SLANDER

- i. Slander is defamation in a non-permanent or transient form, primarily through the medium of spoken words or gestures.
- ii. As noted above, Slander is ordinarily not actionable *per se*. This means that the plaintiff is not entitled to compensation unless he can show that he suffered some actual loss such as dismissal from work as a result of the slander.
- iii. The very words used in slander must be pleaded in court. Evidence must be tendered as to why those words are capable of hurting the reputation of the plaintiff. In *Yesufu v. Gbadamosi*. It was held that in slander the alleged defamatory words relied upon must be pleaded and proved in evidence.
- iv. However, in some exceptional circumstances, the courts would hold slander to be actionable *per se*.

9. EXCEPTIONAL CIRCUMSTANCES IN WHICH SLANDER IS ACTIONABLE *PER SE*

- i. **IMPUTATION OF CRIME:** Where a defendant alleges that a plaintiff has committed a crime that is punishable by imprisonment the court would hold that the defamation is actionable *per se*. In **AGOAKA V EJIORFOR**, the defendant falsely accused the plaintiff at a village gathering of stealing his cocoyam. The court held that this slander was actionable *per se*. It is important to emphasize that it must be a crime punishable by imprisonment and not by fine. In **FARASHI V YAKUBU**, the plaintiff claimed damage for slander against the defendant who publicly accused him of committing adultery with his sister in law. The court held that since adultery was not punishable by imprisonment the slander was not actionable *per se*. It is also important to emphasize that the imputation of crime must allege the guilt of the plaintiff, and not express suspicion. If Joy publicly announces that, 'Bola is an armed robber.' It would be actionable *per se*. If Joy publicly states that she suspects Bola to be one of the robbers who came to their street it would not be actionable *per se* because her statement is a mere expression of her suspicion.
- ii. **IMPUTATION OF CERTAIN DISEASE:** It is actionable *per se* for the defendant to say that the plaintiff is infected with certain contagious or repulsive diseases as this would cause others to shun him. In **BLOODWORTH V. GREY**, the plaintiff married the defendant's daughter. The defendant who was not happy with the marriage, went about telling people, that the plaintiff had a venereal disease from going to the woman on derby road. The court held that it was actionable *per se*.
- iii. **IMPUTATION OF UNCHASTITY OR ADULTERY:** This particular exception applies only to women or girls. Where a defendant makes a statement imputing unchastity or adultery against any woman or girl it is actionable *per se*. In **SHEPHERD V. WAKEMAN** the plaintiff, was engaged to a man. The defendant kept pleading with her to marry him. She refused. The plaintiff subsequently told the defendant that a date had been fixed for her wedding to the man she was engaged to. The defendant wrote a letter to the man the plaintiff was engaged to that the plaintiff was unchaste. The court held that even if it was by mere words of mouth it would be actionable *per se*. This exception has been extended to include an imputation of lesbianism. In **KERR V. KENNEDY**, the court held that it was actionable *per se* to tell people that a woman was a lesbian.

iv. IMPUTATION AFFECTING PROFESSIONAL OR BUSINESS REPUTATION. When a defendant publicly makes a statement imputing professional incompetence or unprofessional behaviour against the plaintiff, it is actionable *per se*. Thus to say the banker is fraudulent or the lawyer does not know law or the barber is inexperienced would be actionable *per se*. In England, the rule is that the statement must be directly connected to the plaintiff's job. In *JONES V JONES* the court held that it was not actionable *per se* for the defendant to say the plaintiff, a school head master, had committed adultery with a cleaner in the school. The court held that the statement was not an allegation of unethical behavior in his capacity as a head master. This common law rule in England is still applied in Northern Nigeria. The rule in England is no longer applicable in Western, Eastern and Lagos State.

10. SLANDER AND SPECIAL DAMAGES

For slander that is not actionable *per se*, the plaintiff must show that the defendant's defamatory statement caused him to suffer actual damage such as loss of employment, loss of client, loss of relationship etc. In the case of *ONOJIOGHOFIA V OKITIPAI* the defendant publicly made the following statement about the plaintiff, a building contractor: 'T. O. is a rogue, he ran away with my money and is still on the run.' The court ruled that the statement was not actionable *per se* as the statement does not constitute an imputation of professional misconduct and that the action fails because the plaintiff did not prove actual damage he suffered from the statement.

11. LIMITATIONS TO RULE IN SLANDER

The law recognizes that not every statement against a plaintiff's character is defamatory. In some circumstances the law would hold that a statement which attacks a plaintiff's character is a mere *vulgar abuse*. In deciding what constitutes vulgar abuse and what constitutes slander, the court would look at the circumstance of the particular case. If Bola Chicago is quarrelling with Joy Nyanga in Lagos Bus Stop and Bola calls Joy a dirty prostitute. The court would hold that the statement though spoken in public constitutes mere vulgar abuse. On the other hand, if Bola Chicago is addressing the National Association of Nigerian students and he says 'I know Joy Nyanga, she is a dirty prostitute' that would constitute slander.

In **THORLEY V. LORD KERRY**, the court stated that, 'For Mere General Abuse Spoken no action lies.'

In **Bakare V Ishola** the court ruled that the calling of the plaintiff a 'thief' in the course of a quarrel was not defamatory. In **Ibeanu V Uba** the defendant saw the plaintiff in a public road and shouted '...you brought thieves to steal my goat and you have come to ask me.' The court held it constitutes slander.

In **Benson V West African Pilot Ltd** it was held that the concept of vulgar abuse as a limitation to the tort of defamation does not apply to written statements or other forms of libel.

12. ELEMENTS OF THE TORT OF DEFAMATION

To succeed in an action for defamation, the plaintiff must prove that:

- a. The words were defamatory
- b. The words referred to the plaintiff
- c. The words were published.
- d. For slanders which are not actionable per se, they must in addition prove that damage was suffered as a result of the defamation.
 - a. **THE WORDS WERE DEFAMATORY.** They must be false statements that discredit the plaintiff. There are 2 aspects of this element.
 - The first is that the words complained about by the plaintiff must be clearly and unambiguously defamatory. In **OMO-OSAGIE V. OKUTUBO**, the court stated that, "In construing whether the words are capable of a defamatory meaning, the judge should construe the words according to the fair and natural meaning which would be given them by reasonable persons of ordinary intelligence who are neither unusually suspicious nor unusually naive." In **EYO V EASTERN NIGERIA INFORMATION SERVICE** the plaintiff complained that the defendant published in a newspaper that he had made 'advances totaling 2,312 Pounds' for an asset. The court ruled that the statement was not defamatory as it was capable of several meanings.
 - The second aspect is the fact that a defamatory word may only indirectly be defamatory. It is important to note that an apparently innocent statement could be defamatory in law because of what it suggests. Such statements are described as **Innuendos** in law. Innuendos are words which are not defamatory in themselves but are defamatory because of

secondary meanings attached to them. In other words, these words are defamatory only because of what they insinuate. In *CASSIDY V. MIRROR NEWSPAPERS LTD*, the defendant published a photograph of Mr Cassidy with a woman and put the caption "Mr. Cassidy and Miss X whose engagements have been announced." Mrs Cassidy filed this action claiming that the newspaper publication was insinuating that Mr. Cassidy was in an amorous relationship with Miss X. The court held that it was defamatory.

Innuendos may be true or legal innuendos or false or popular innuendos. In *True or Legal Innuendo*, the words may not be defamatory on the surface but are defamatory to those who are familiar with the facts of the case and know the plaintiff and defendant. If Joy Nyanga alleges that Bola Chicago is a frequent visitor of number 10 Kaduna Street and number 10 Kaduna Street is den of criminals and this fact is known to all inhabitants of Kaduna Street then it is true and legal Innuendo. In *AKINTOLA V ANYIAM* the defendant published that the plaintiff was the son of Illesha parents in spite of the fact that the plaintiff who was premier of the West had always insisted that he was born of Ogbomosho parents. The court held it constituted innuendo. **FALSE OR POPULAR INNUENDO** refers to statements which carry a defamatory imputation that can be inferred by all reasonable persons generally and not to those who know the peculiar details alluded to in the Innuendo. In *MUTUAL AID SOCIETY LTD V AKERELE* the defendant put a false advert in the paper that the plaintiff's house was for sale owing to his inability to meet his mortgage. The court held it was defamatory as it was an innuendo that the plaintiff was a debtor. Similarly, in *ADELEKE V. NATIONAL BANK OF NIGERIA LTD*, the plaintiff had an account with the defendant bank which was in credit. He issued a cheque to a third party which was drawn on the bank. The cheque was returned plaintiff with the inscription drawee unpaid. The court held that it was defamatory. That the return of the cheque to the drawer whilst the account was had sufficient fund to pay the amount written on the cheque was an innuendo that the drawer was not credit worthy and therefore dishonest.

- b. **THE WORDS MUST REFER TO THE PLAINTIFF.** The Words must refer to the plaintiff in the name by which he is generally known. In *SERVICE PRESS LTD V AZIKIWE* the court held that the plaintiff's action must fail as the newspaper publication complained about referred to 'Ben Azikiwe' whereas the plaintiff was universally known as 'Nnamdi

Azikiwe.' However, the defamatory statement must not refer to the plaintiff by the name. thus in *DALUMO V. SKETCH PUBLISHING CO*, the publication which stated that top Nigerian Airways officials were corrupt was held to be defamatory against the plaintiff who was a senior executive in Nigerian airways. Similarly in *BPPC V. GWAGWADA* the publication which falsely alleged that the contractor handling a project had fled with the contract fees was held to be defamatory against the plaintiff who was the contractor.

- c. **THE WORDS MUST BE PUBLISHED.** The words complained about by the plaintiff must have been published. For Slander, this means that it must have been said to the hearing of at least one person. In *EJUBULOR V. OSHA II* the court held that, 'To constitute publication the defamatory matter must be published to a third party and not just the plaintiff. Publication is the making known of the defamatory material to a third party other than the plaintiff.' For libel it must have been printed in a medium that was read by at least one person. In *OKOTCHA V OLUMESE* the plaintiff applied to the Lagos State Police for character reference to support his application for Visa to the United States. The defendant, an official in Central C.I.D in Lagos sent to the plaintiff a certificate headed 'To Whom it May Concern' which recorded erroneously that the plaintiff had been twice convicted for dishonesty. The plaintiff showed the certificate to a third party. The court held that the plaintiff's action must fail as the publication was done by the plaintiff himself and not the defendant.

13. UNINTENTIONAL PUBLICATION

The general rule is that a defendant is not liable for acts of unintentional publications. In other words the defendant would not be liable for defamatory statements in which it would not be reasonable to expect him to know that it would be published. For instance where a defendant writes a letter to the plaintiff and delivers it to the plaintiff's house. And the plaintiff's father (who is visiting) opens the letter and reads it. The defendant would not be liable because his intention was to give the letter to the plaintiff. However, if the plaintiff ought to know that a third party would read the defamatory document he would be liable. For instance, in the case of *THEAKER V. ROBINSON* the plaintiff's husband read a defamatory letter that was addressed to his wife. The court held the defendant liable on the grounds that he ought to know that a defamatory letter addressed to the plaintiff and posted to her house can be read by her

husband. Similarly, where the defendant writes a letter to the plaintiff's business address and the plaintiff's secretary opens and reads the letter, it is defamation. However, it would not be defamation if the letter is marked "Private and Confidential."

In *WENHAK V. MORGAN* it was held that publication by a husband to the wife or vice versa does not amount to defamation as the nature of marriage requires a certain reasonable level of communication between couples.

Publication to people who lack mental capacity such as insane or drunkards does not amount to publication as they are incapable of appreciating the significance of the publication.

Finally, it must be emphasized that dictation of a letter to a secretary would not amount to publication as this activity is recognized as necessary in the ordinary course of business.

DEFENCES TO THE TORT OF DEFAMATION

1. **JUSTIFICATION:** It is a complete defense to an action for Slander or Libel that words complained of were the truth. Even if the defendant spreads the information out of malice, the defense that it is the truth will avail him. This is because the standard of the law is that a man is not entitled to the protection of a reputation he does not possess. In *ONWUCHEKWA V ONOVA* the plaintiff brought an action for defamation because the defendant stated that the plaintiff was a lunatic and a proper candidate for confinement. The defendant called the Senior Psychiatrist of Yaba Psychiatric Centre who confirmed that the plaintiff was a psychiatric patient. The court held that the plaintiff's action failed. Similarly, in the case of *REGISTERED TRUSTEES OF AMORC V. AWONIYI*, the defense of justification availed the defendant who published in the bulletin of the Evangelical Church of West Africa that the plaintiff was a sinister and satanic organization. In *DIN V. AFRICAN NEWSPAPERS LTD*, the plaintiff, a former captain in the Nigerian Army applied to contest the house of representatives elections but was disqualified by the Federal Electoral Commission. He organized a press conference in which he described himself as a retired army captain who served the Nigerian army for 9 years meritoriously and with an unblemished record before retiring voluntarily. The Nigerian army organized a press conference and revealed that he was dismissed from the army for gross misconduct as a result of doing certain dishonourable things. The defendant published the latter conference. The plaintiff filed an action for defamation. The court held that the defence of justification availed the defendant.

LOOK AND LEARN

1. Examine the court's enunciation of the defenses of Justification and fair comment in the case of Emeagwara V. Guardian Newspaper Ltd [1998] 1 N.W.L.R. Part 535 page 610
2. What is the status of confessions made to Roman Catholic Priests that defame other people
3. Examine the case of Complete Comm. Ltd. v. Onoh (1998) 5 NWLR pt. 549, p. 197 C.A.

2. **FAIR COMMENT:** It is a defense to an action for defamation that the statement made was a fair comment on a matter of public interest. Fair comment is a dispassionate expression of opinion or conclusions on facts correctly stated. This defense is necessary to preserve the right to freedom of expression. For this defense to lie, the following conditions must be fulfilled.

- The statement must be on a subject of public interest;
 - The statement must be a comment or an opinion and not an assertion. In **NTHENDA V ALADE** the defendant published that the plaintiff, a university lecturer, was engaged in immoral acts with a female student. The defense of fair comment failed as the court stated that he made an assertion not a comment.
 - The comment must be based on facts truly stated.
 - The comments must be honestly made.
3. **ABSOLUTE PRIVILEGE:** This defense applies to people in position of government. They cannot be held liable for any statement no matter how false and how damaging to a person's reputation it may be. This defense arises because public policy requires that certain persons should be free to speak and write without fear of liability for actions. This defense covers the following: Statements made in a judicial proceeding by judges, parties

and witnesses; statements made in proceedings of the legislature; statements made by one state officer to another state officer and Reports of Judicial proceedings.

4. **QUALIFIED PRIVILEGE:** This defense applies to people who are not necessarily in government but who by the nature of their profession or their jobs or who as a result of the peculiar circumstances are awarded immunity from law suits for defamation. They include statements made in the performance of legal, moral or social duty; statements made to proper authority; statements made in self defense; Report of proceedings in legislature; report of judicial proceedings. In the case of *ATOYEBI V. ODUDU* The plaintiff was a surveyor working for the defendant another surveyor. The defendant issued a statement titled *DISCLAIMER* addressed to all practicing estate surveyors to the effect that the plaintiff was dismissed for professional misconduct. The statement turned out to be false. Nevertheless the plaintiff was shunned by other surveyors and even clients. The supreme court held that the defense of qualified privilege must fail as the statement was false.
5. **CONSENT:** It is a defence to defamation that the plaintiff consented to the events that led to the defamatory statement. This is based on the maxim *voluntati non fit injuria*.